



POLICE DEPARTMENT

October 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303046 (Incident Date: April 10, 2023) regarding Police Officer Ryan Cotter, Tax No. 962327 (DADS No. 2024-31248)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303046, pertaining to Police Officer Ryan Cotter. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Cotter would be detrimental to the Police Department's disciplinary process.

In this case, the Police Commissioner has determined that the Civilian Complaint Review Board lacks jurisdiction to investigate and prosecute this matter as Police Officer Cotter's actions did not constitute police action, nor was there an invocation of police authority. Furthermore, a parallel investigation has been conducted by the Internal Affairs Bureau, and Charges and Specifications were served. They are currently pending.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, due to a parallel investigation and lack of jurisdiction, the Police Commissioner, in the interest of justice retains jurisdiction over this matter and intends to impose no disciplinary action against Police Officer Cotter for the alleged misconduct. It should be noted that this decision has no bearing on the parallel investigation which will continue through the disciplinary process.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 7, 2024

The Honorable Thomas G. Donlan
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB Case No. 202303046 (Incident Date: April 10, 2023) regarding Police Officer Ryan Cotter, Tax No. 962327 (DADS No. 2024-31248)

Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony Marino, dated October 3, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter against Police Officer Ryan Cotter. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino states that “the Police Commissioner has determined that the Civilian Complaint Review Board lacks jurisdiction to investigate and prosecute this matter as Police Officer Cotter's actions did not constitute police action, nor was there an invocation of police authority. CCRB disagrees with this determination.

In this matter, the complainant alleged that PO Cotter pointed a firearm at him during an off-duty incident, thus implicitly invoking his authority as a police officer. Moreover, during his testimony, PO Cotter confirmed that he had one of his off-duty firearms and that he was able to bring his off-duty firearm into Citi Field and the K Korner, where the incident occurred, because he informed security that he was an off-duty NYPD officer, presenting his NYPD ID card and announcing that he was armed.

Additionally, Deputy Chief Marino states that a parallel investigation has been conducted by the Internal Affairs Bureau, Charges and Specifications were served and currently pending. CCRB disagrees with the determination to retain the matter. The memo of understanding limits matters, in which it would be detrimental to the Police Department’s disciplinary process, to matters where “there are parallel or related criminal investigations...” The fact that an IAB case is pending does not preclude the CCRB from pursuing Charges and Specifications for the same incident.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Cotter in this matter.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 8, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303046 (Incident Date: April 10, 2023) regarding Police Officer Ryan Cotter, Tax No. 962327 (DADS No. 2024-31248)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 7, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Ryan Cotter. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Cotter for the reasons expressed in my October 3, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, due to a parallel investigation and lack of jurisdiction, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Cotter for the alleged misconduct. Again, it should be noted that this decision has no bearing on the parallel investigation, which will continue through the disciplinary process.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office